

Contract of Employment

This contract is entered into on this _____ of _____ year of _____ by and between Caring Hearts of Utah (hereinafter called Employer) and _____ (hereinafter called Employee) (together, "Parties"). The use of the masculine gender shall be interpreted to include the feminine.

WHEREAS, employee has been offered at-will employment or is a current at-will employee with the company where employee will be or is currently providing companionship services to a client(s) ("client") of the company while living in the client's home;

WHEREAS, the parties desire to enter into a "reasonable agreement" as these terms have been interpreted by the United States Department of Labor ("DOL") for purposes of the Fair Labor Standard Act ("FLSA")

WHEREAS, employee will be or is a domestic service worker residing in the client's home and will be provided with private quarters in a homelike environment

WHEREAS, the parties desire to set forth the terms and conditions upon which employee agrees to provide companionship services to company's client(s) as described herein;

WHEREAS, employee has been informed and is aware that the execution of this agreement is a necessary term and condition of employee's employment; and

WHEREAS, the employee understands the extreme importance to the company in keeping its operations, techniques, business plans, financial information, and information related to its customers proprietary and confidential.

NOW, THEREFORE, in consideration for employee's employment and/or continued employment at the company and the mutual promises set forth herein, the company and employee agree as follows:

1. **Employee-Employer Status.** In the performance of this agreement, the employee is in all respects an employee of the company, on "at will" basis, and as a result such employment relationship may be terminated by either the company or employee at any time, for any reason, with or without cause. Employee understands and agrees that he/she is not an agent with authority to bind the company.
2. **Effective Date of Companionship Care**
 - a. Employee is a current employee of the company and is subject to a live-in caregiver contract. This agreement supersedes and replaces such contracts.

For purposes hereof, the date on which Employee began providing "Companionship Care" (as defined in this contract) for the company is the "effective date".

- b. Employee is a new employee of the company. The date this agreement has been signed by the parties is the "effective date".

3. Companionship Care

- a. Employee understands and agrees that he/she will live at the client's home for an extended period. Employee will be provided private quarters in the client's home, with a sleeping space that is separate from the client. Employee will be provided with bed, lighting, and a dresser and/or closet in which to store clothing or other belongings. In addition, employee will have access to facilities for cooking and eating, a bathroom, and a space for recreation. These additional facilities may be shared by employee and/or other household members of the client.
- b. Employee shall provide companionship care to client. For purposes hereof, "Companionship Care" is fellowship (engaging client in social, physical, and mental activities such as conversation, reading, games, crafts, accompanying client on walks, errands, to appointments or to social events) and protection (being with client in their home or outside the home to monitor their safety and well-being). Employee shall assist client with activities of daily living (such as dressing, grooming, eating, bathing, toileting and transferring), as well as instruments of daily living (tasks that enable them to live independently at home such as meal preparation, driving, light housework, and assisting them with the physical taking of medications). Employee shall not perform general household work, such as caring for family members other than client, or medically related tasks (services that require training by medical personnel, including invasive or sterile procedures or procedures that otherwise require the exercise of medical judgment).
- c. Maintain open communication between families and health care professionals regarding client's medical and emotional condition
- d. Document and report any changes in client's health status
- e. Ensure highest client safety and well-being
- f. Employee agrees to provide proof of First Aid training. If no training exists, employee agrees to complete training prior to their 6 month review.
- g. Employee agrees to be tested for Tuberculosis prior to working with clients. If employee has been tested within 6 months of hire date, the results of that test may be submitted, but the cost of that test will not be reimbursed. The cost of a new test will be reimbursed by Company upon submission of results of the TB test to Company. Results must be submitted within 7 days of hire date.
- h. Employee acknowledges regarding employment policy : "No Call, No show, No Job" is in effect and a Notice of Neglect will be forwarded to both the Utah Department of Health and Welfare and the Background Check Program.
- i. Employee agrees to use his/her best efforts to serve the employer. Employee agrees that he will at all times respect the rights of the patients they serve.
- j. Employee recognizes and fully realizes that employer is a Personal Care Agency, staffing pattern may be varied. Employer has the sole right to make work schedule changes and Employee agrees to abide by such changes.

- k. Employee acknowledges by signing, that orientation on policies and procedures, drug-free workplace, sexual harassment, and abuse investigation has been completed.

4. Compensation

- a. Employee shall document companionship care on the "PCS Notes" form provided by company and shall document all hours worked on PCS Notes form.
- b. Employee understands and agrees that he/she will not be compensated for eight (8) hours of sleep time, generally from 11pm to 7am. Employee shall document on the PCS Note form whether or not he/she was able to have eight (8) hours outside of caregiving, where a minimum of five (5) hours of which employee was uninterrupted rest. In the event that employee was not able to have eight (8) hours outside of caregiving or did not have a minimum of five (5) uninterrupted hours for rest, employee may be entitled to compensation, to be determined by the company, at its sole discretion.
- c. Employee shall be paid a daily rate of not less than \$120.00 per day, based on a forty (40) hours a week at the national minimum wage of \$7.25 and seventy-two (72) hours a week at time and a half, and taking into account a deduction of \$33.34 per day for room and board expenses in connection with living in the home of the client.

5. Confidential Information: Employee acknowledges and agrees that, in the course of employee's employment, employee may become acquainted with confidential information belonging to the company, its clients, customers and accounts. Employee shall not, during or after the term of employee's employment, use or disclose said confidential information, or any part thereof, to any person, firm, corporation, association, limited liability company, joint venture, or other entity, for any reason or purpose whatsoever, without the prior written consent of the company. Confidential information may be kept in any form, including, but not limited to, computer files, papers, documents, contracts, letters, communications and other things, tangible and intangible. Upon the conclusion or termination of employment, the employee shall immediately return to the company all confidential information and other property of the company in employee's possession or subject to employee control. For purposes of this agreement, "confidential information" shall include, but not be limited to, information concerning:

- a. Current and prospective clients, customers, and accounts of the company, including methods of soliciting and retaining clients, customers, and accounts of the company, including methods of soliciting and retaining clients, customers, and accounts, as well as the identity of all such current and prospective clients, customers, and accounts;
- b. Information deemed confidential or proprietary by the clients, customers and accounts of the company;
- c. Advertising strategies, techniques and processes;
- d. invoicing/billing information and any other information reflecting the company's pricing practices;
- e. Company techniques, methods and processes, to fellowship and provide caregiving services to the company's clients;
- f. Client information which employee learned in the course of providing companionship care, and would not otherwise know about the client.

6. Remedies and Breach: this agreement creates rights which cannot solely be protected by an award of money damages and that specific performance shall lie for any material breach of this agreement. Employee agrees, in the event of any breach of this agreement, material or immaterial, that the company will suffer irreparable harm and will not have an adequate remedy at law, that the company may pursue and obtain preliminary and permanent injunctive relief, in addition to any other remedy to which the company may be entitled at equity or law, and that the company shall be entitled to a judgment from a court of competent jurisdiction to enjoin any further breach of this agreement. Employee agrees to reimburse the company for any and all of its reasonable attorneys' fees and costs arising from its good faith effort to enforce this agreement, including any and all reasonable attorneys' fees and costs necessary to establish a right to fees and costs under this paragraph.
 - a. Employee agrees to pay \$5,000 to company, should employees choose to leave their employment at Company to work directly for a client, either former or current, of Company.
7. Severability/Reformation: It is the intention of the parties that the terms of this agreement shall be construed to be separable and severable. No provision of this agreement found invalid or unenforceable shall invalidate or render unenforceable any other provision of this agreement. It is the intention of the parties that if any provision of this agreement is found invalid or unenforceable in any part or degree, it shall be interpreted, if possible, so as to render it enforceable on a limited and reasonable basis.
8. Entire agreement: This agreement sets forth the entire understanding of the parties with respect to the subject matters, and shall not be modified or amended except by a further written document signed by all parties.
9. Employee's Continuing Obligations: Employee's obligations under this agreement shall continue following the conclusion or termination of Employee's employment with the company.
10. Assignment: The company's rights under this agreement shall inure to the benefit of and shall be subsequent assigns of this agreement to a parent, subsidiary or affiliate, or successors or assigns by reorganization, merger or consolidation or sale of substantially all of the company business or assets. This Agreement shall not be assignable by the employee without the written consent of the company.
11. Choice of Law: This agreement shall be governed by and construed and interpreted in accordance with the laws of the State of Utah without reference to principles of conflict of laws. Each of the Company and the Employee hereby submits for itself or himself, as applicable, to the exclusive general jurisdiction of the courts of the State of Utah for any dispute arising out of this Agreement.

IN WITNESS WHEREOF, the parties have entered into this Agreement and knows the contents thereof, accepts this agreement as written and signs of his or her own free will, as of the date first written below.

Employee Signature

date

Company Administrator or Designee

date